

Short title,
construction,
and repeal.

6 & 7 Geo. 5.
c. 65.

10.—(1) This Act may be cited as the Naval and Military War Pensions, &c. (Administrative Expenses) Act, 1917, and the Naval and Military War Pensions, &c. Acts, 1915 and 1916, the Ministry of Pensions Act, 1916, so far as it relates to the Statutory Committee, and this Act may be cited together as the Naval and Military War Pensions, &c. Acts, 1915 to 1917.

(2) This Act shall be construed as one with the principal Act.

6 & 7 Geo. 5.
c. 12.

(3) Section two of the Naval and Military War Pensions, &c. (Expenses) Act, 1916, and section eighteen of the Local Government (Emergency Provisions) Act, 1916, are hereby repealed :

Provided that nothing in this repeal shall affect the power of making contributions under the enactments so repealed towards the administrative expenses of local and district committees incurred before the passing of this Act.

CHAPTER 15.

An Act to amend the enactments relating to National Health Insurance with respect to persons suffering from disablement in consequence of the present War.

[17th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of
5 Geo. 5. c. 29,
s. 1 (1).

1.—(1) For subsection (1) of section one of the National Insurance (Part I. Amendment) Act, 1915, the following subsection shall be substituted :—

1 & 2 Geo. 5.
c. 55.

“(1) Where, in pursuance of any Order in Council relating to pensions of officers or seamen and marines, or of any Royal Warrant relating to pensions of officers or soldiers, disabled in consequence of the present war, there has been granted, whether before or after the passing of this Act, to any person to whom section forty-six of the National Insurance Act, 1911, applied at the time of his leaving naval or military service, a pension in respect of disablement in the highest degree, the rate of any sickness or disablement benefit to which that person may be entitled in respect of his insurance under the National Insurance Act, 1911, shall, throughout the period in respect of which that pension, or a pension of a greater amount granted in lieu thereof, is payable, be reduced by five shillings a week, notwithstanding anything in the said Act to the contrary :

“ Provided that a person to whom such a pension has been granted shall not be subject, or shall cease to be subject, to such reduction in the rate of benefit—

“(i) as respects sickness benefit, if he proves that since leaving naval or military service he has been employed within the meaning of the National Insurance Act, 1911, during twenty-six weeks, whether consecutive or not, and that twenty-six weekly contributions have been paid in respect of him ; and

“(ii) as respects disablement benefit, if he proves that since leaving naval or military service he has been so employed during one hundred and four weeks, whether consecutive or not, and that one hundred and four weekly contributions have been paid in respect of him.

“ For the purposes of this subsection—

“(a) an allowance in lieu of pension to a person undergoing a special course of medical treatment or undergoing treatment in an institution or receiving training in a technical institution or otherwise ; and

“(b) a pension in respect of total disablement suffered in consequence of the present war, granted before the first day of April nineteen hundred and seventeen,

shall be treated as if such allowance or pension were a pension in respect of disablement in the highest degree.”

(2) Where benefit at the unreduced rate has been paid for any period between the first day of April nineteen hundred and seventeen and the passing of this Act to a person to whom a pension in respect of disablement in the highest degree has been granted since the first-mentioned date, then the amount of the difference between benefit at the unreduced rate and at the reduced rate for such period shall be treated as an advance, and subsection (2) of section one of the National Insurance (Part I. Amendment) Act, 1915, shall apply to the recovery thereof. I I

2. Where under any such Order or Warrant as aforesaid a gratuity or temporary allowance of not less than thirty pounds, any portion of which is in respect of temporary total disablement, has on or after the first day of April nineteen hundred and seventeen been granted in place of a pension to any person to whom section forty-six of the National Insurance Act, 1911, applied at the time of his leaving naval or military service, he shall not from the date of the award or the date of the passing of this Act, whichever may be the later, be entitled in respect of his insurance under the National Insurance Act, 1911, to any sickness or disablement benefit until he proves that he has since leaving naval or military service been employed within the

Provision as to
benefits of
men entitled
to gratuities.

meaning of the National Insurance Act, 1911, during twenty-six weeks, whether consecutive or not, and that twenty-six weekly contributions have been paid in respect of him :

Provided that if such person at any time after the grant of the temporary allowance or gratuity to him becomes entitled to a pension under any such order or warrant, this section shall cease to apply to him.

Provision as to
arrears.

3. In calculating arrears of contributions for the purposes of the National Insurance Act, 1911, no account shall be taken of any arrears accruing during any period when the person in question has been subjected to a reduction of, or been disentitled to, sickness and disablement benefit by virtue of this Act.

Power to grant
out of the
Navy and
Army Insur-
ance Fund
benefits to
persons not at
present quali-
fied to receive
them.
5 & 6 Geo. 5.
c. 15.

4. Regulations of the Insurance Commissioners may provide that any man discharged from service as a seaman, marine or soldier, who is certified by the Admiralty or Army Council to be suffering from any disease or bodily or mental disablement in the manner provided by section one of the National Insurance (Navy and Army) Act, 1914 (Session 2), and who, by reason of his having elected not to pay contributions during the period of his service, or for any other reason, is not qualified under the National Insurance Act, 1911, to receive benefits out of the Navy and Army Insurance Fund, shall, subject to the prescribed conditions, become or continue to be entitled out of that fund to medical and sanatorium benefits.

Short title,
interpretation
and construc-
tion.

5.—(1) This Act may be cited as the National Insurance (Part I. Amendment) Act, 1917, and the National Insurance Acts, 1911 to 1915, so far as they relate to health insurance, and this Act may be cited together as the National Insurance (Health) Acts, 1911 to 1917.

(2) For the purposes of this Act a person shall not be deemed to have been employed in any week unless he proves that the remuneration received in respect of such employment was such as to provide a substantial contribution towards his means of livelihood in that week.

(3) This Act shall be construed as part of Part I. of the National Insurance Act, 1911.

CHAPTER 16.

An Act to enable Meetings of Approved Societies, Friendly Societies, and Trade Unions to be dispensed with during the present War, and for purposes connected therewith.

[17th May 1917.]